

25NWLC50241 25NWLC50241

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-06-25

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Case Number: 25NWLC50241 Hearing Date: June 25, 2026 Dept: Y

25NWLC50241: FINANCIAL PARTNERS CREDIT UNION, A CALIFORNIA CORPORATION vs FRANCISCO FERNANDEZ

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Plaintiff Financial Partners Credit Union ("Plaintiff") in support of its Motion for Judgment on the Pleadings, including the supporting declaration of counsel.

Code of Civil Procedure section 439 requires parties to meet and confer in person, by telephone, or video conference at least 5 days before filing a motion for judgment on the pleadings. The parties must discuss whether the issues to be raised by the motion can be resolved to avoid court intervention, and the moving party must file a declaration detailing this compliance.

The Court finds that the attorney declaration submitted by Plaintiff does not demonstrate that any attempt to meet and confer was made and thus, it is insufficient to meet the requirements set forth in Code of Civil Procedure section 439.

The Court will grant a continuance to cure the defect in the meet and confer process and requests that Plaintiff file a supplemental declaration pursuant to Code of Civil Procedure section 439 detailing its meet and confer efforts.

Plaintiff's motion will be continued to July 30, 2026 at 8:30 a.m. in Dept. Y.

Plaintiff to give notice.